

THE GREAT TAXICAB ROBBERY

A True Detective Story



by JAMES H. COLLINS

THE GREAT TAXICAB ROBBERY

A True Detective Story



by JAMES H. COLLINS

The Project Gutenberg eBook of The Great Taxicab Robbery: A True Detective Story

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Great Taxicab Robbery: A True Detective Story

Author: James H. Collins

Release date: September 25, 2016 [eBook #53145]

Most recently updated: October 23, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/53145

Credits: Produced by ellinora and The Online Distributed Proofreading Team at <http://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive)

***** START OF THE PROJECT GUTENBERG EBOOK THE GREAT
TAXICAB ROBBERY: A TRUE DETECTIVE STORY *****

Transcriber's Note

Obvious spelling and punctuation errors have been corrected.
Spelling variations have been kept as in the original.

The cover has been created by the transcriber from elements in the book and has been placed in the public domain.

THE GREAT TAXICAB ROBBERY



RHINELANDER WALDO
Commissioner of Police, New York City

THE GREAT TAXICAB ROBBERY

A True Detective Story

BY
JAMES H. COLLINS

WRITTEN FROM RECORDS AND PERSONAL ACCOUNTS
OF THE CASE FURNISHED BY THE NEW
YORK POLICE DEPARTMENT

NEW YORK
JOHN LANE COMPANY
MCMXII

COPYRIGHT, 1912, BY
JOHN LANE COMPANY

This book has something to say about practical
results of wiser police administration in New
York. It is respectfully dedicated to

HON. WILLIAM J. GAYNOR

MAYOR OF NEW YORK CITY

the official who took the initiative in improving
conditions

PREFACE

There are several reasons for this little book, but the best of all is the main reason—that it is a cracking good story, and right out of life. The characters will be found interesting, and they are real people, every one of them. The incidents are full of action and color. The plot has mystery, surprise, interplay of mind and motive—had a novelist invented it, the reader might declare it improbable. This is the kind of story that is fundamental—the kind Mr. Chesterton says is so necessary to plain people that, when writers do not happen to write it, plain people invent it for themselves in the form of folk-lore.

But apart from the story interest there are other reasons.

When the New York police department had run down all the threads of the plot, and accounted for most of the characters by locking them up, they had become so absorbed in the story themselves, as a story, that they thought the public would enjoy following it from the inside.

While the crime was being dealt with, the police were subjected to pretty severe criticism. They felt that the facts would make it clear that they knew their trade and had been working at it diligently.

The story gives an insight into real police methods. These are very different from the methods of the fiction detective, and also from the average citizen's idea of police work. They ought to be better known. When the public understands that there is nothing secret, tyrannical or dangerous in good police practice, and that our laws safeguard even the guilty against abuses, there will be helpful public opinion behind officers of the law, and we shall have a higher degree of order and security.

The directing mind in this case was that of Commissioner George Dougherty, executive head of the detectives of the New York Police Department. Thousands of clean, ambitious young fellows are constantly putting on the policeman's uniform all over the country, and rising to places

as detectives and officials. The manufacturer or merchant may find himself in the police commissioner's chair. Even the suburbanite, with his bundles, may be, out at Lonesomehurst, a member of the village council, and thus responsible for the supervision of a police force that, though it be only two patrolmen and a chief, is important in its place. So in writing the story there has been an effort to show how a first-rate man like Commissioner Dougherty works. His methods are plain business methods. Most of his life he has earned his living following the policeman's trade as a commercial business. What he did in a case of this kind, and how, and why, are matters of general interest and importance.

Finally, the story throws some useful light on criminals. It shows the cunning of the underworld, and also its limitations. To free the law-abiding mind of romantic notions about the criminal, and show him as he is, is highly important in the prevention of crime.

LIST OF ILLUSTRATIONS

	FACING PAGE
<u>Rhineland</u> <u>Waldo</u> , Commissioner of Police, New York City	
<i>Frontispiece</i>	
<u>George S. Dougherty</u> , Second Deputy Police Commissioner	20
<u>Edward P. Hughes</u> , Inspector in Command of Detective Bureau, and <u>Dominick G. Riley</u> , Lieutenant and Aide to Commissioner Dougherty	40
<u>Geno Montani</u> , <u>Eddie Kinsman</u> , <u>Gene Splaine</u> , <u>“Scotty the Lamb”</u> and <u>John Molloy</u>	60
<u>James Pasquale</u> , <u>Bob Delio</u> , <u>Jess Albrazzo</u> , and <u>Matteo Arbrano</u>	80
<u>“Scotty” Receives Final Instructions</u>	110
<u>“The Brigands” “Stick-up” the Hold-up Men for Theirs</u>	126

THE CAST

GENO MONTANI, a taxicab proprietor.

WILBUR SMITH, an elderly bank teller.

FRANK WARDLE, a seventeen-year-old bank office boy.

EDDIE KINSMAN, alias "Collins," alias "Eddie the Boob," a hold-up man.

BILLY KELLER, alias "Dutch," a hold-up man.

GENE SPLAINE, a hold-up man.

"SCOTTY THE LAMB," a thieves' helper, or "stall."

JOE PHILADELPHIA, alias "The Kid," a runner for thieves, or "lobbygow."

JAMES PASQUALE, alias "Jimmy the Push," keeper of shady resorts known as "208" and "233."

BOB DEILIO, partner of "Jimmy the Push."

JESS ALBRAZZO, a middleman, formerly keeper of the Arch Café, pal of Montani, "Jimmy the Push" and Bob Deilio.

MATTEO ARBRANO, }

PAULI GONZALES, } The "Three Brigands."

CHARLES CAVAGNARO, }

"KING DODO," a Bowery character.

RHINELANDER WALDO, Police Commissioner of New York.

GEORGE S. DOUGHERTY, Second Deputy Police Commissioner, executive head of detectives.

INSPECTOR EDWARD P. HUGHES, in command of Detective Bureau.

POLICE LIEUTENANT DOMINICK G. RILEY, Aide of Commissioner Dougherty's staff.

DETECTIVE SERGT JOHN J. O'CONNELL, Official Stenographer.

THE DETECTIVES on "Plants," "Trailing," "Surrounding," "Arresting," etc.:

John P. Barron, Edward Boyle, Frank Campbell, James Dalton, James J. Finan, John W. Finn, Joseph A. Daly, Daniel W. Clare, John Gaynor, Anthony Grieco, John P. Griffith, Daniel F. Hallihan, Edward Lennon, Henry Mugge, Richard Oliver, Gustavus J. Riley, James F. Shevlin, Joseph Toner, George Trojan, James A. Watson.

“SWEDE ANNIE,” Kinsman’s sweetheart.

MYRTLE HORN, a pal of Annie.

ROSE LEVY, a newcomer in Thompson street, Jess Albrazzo’s girl.

MRS. ISABELLA GOODWIN, a police matron.

MRS. SULLIVAN, keeper of a West Side rooming house.

“JOSIE,” a lady of the Levee district, Chicago.

Detectives, policemen, informants, witnesses, denizens of the underworld,
newspaper reporters, trainmen, ticket sellers, etc., etc.

PLACE—Chiefly in New York, with Scenes in Chicago, Albany,
Memphis, Boston and Montreal.

TIME—February and March, 1912.

The Great Taxicab Robbery

CHAPTER I

WHAT THE PUBLIC HEARD ABOUT THE CRIME

On Thursday, February 15, 1912, the New York evening papers had a startling news story.

Between ten and eleven o'clock that morning two messengers were sent in a taxicab from the East River National Bank, at Broadway and Third street, to draw \$25,000 in currency from the Produce Exchange National Bank, at Broadway and Beaver street, in the downtown financial district, and bring it uptown. This transfer of money had been made several times a week for so long a period without danger or loss that the messengers were unarmed. One of them, Wilbur F. Smith, was an old man who had been in the service of the bank thirty-five years, and the other was a mere boy, named Wardle, seventeen years old. The taxicab man, an Italian named Geno Montani, seemed almost a trusted employee, too, for he operated two cabs from a stand near the bank, and was frequently called upon for such trips.

While the cab was returning uptown through Church street with the money, five men suddenly closed in upon it. According to the chauffeur's story, a sixth man forced him to slacken speed by stumbling in front of the vehicle. Immediately two men on each side of the cab opened the doors. Two assailants were boosted in and quickly beat the messengers into insensibility, while their two helpers ran along on the sidewalk. The fifth man climbed onto the seat beside the chauffeur, held a revolver to his ribs, and ordered him to drive fast on peril of his life. This fellow seemed to be familiar with automobiles, and threatened the driver when he tried to slacken speed. That is a busy part of the city. Yet nobody on the sidewalks seemed to notice anything out of the ordinary. The cab dodged vehicles, going at high speed for several blocks. At Park Place and Church street, after a trip of eleven blocks, at a busy corner, the chauffeur was ordered to stop the cab, and the three robbers got down, carrying the \$25,000 in a

leather bag, ran quickly to a black automobile without a license number which was waiting for them, and in a few moments were gone.

That was the substance of the story.

Information came chiefly from the chauffeur, because the two bank employees had been attacked so suddenly and viciously that they lost consciousness in a moment. When the chauffeur looked inside his cab after the crime, he said, he saw them both lying senseless and bleeding. They could give no description of the assailants. Eye-witnesses were found who had seen men loitering in the neighborhood where the cab was boarded shortly before the crime, but their descriptions were not very useful.

That night the New York evening papers published accounts of the crime under great black headlines, and on the following morning every news item of a criminal nature was grouped in the same part of the papers to prove that the city had entered one of its sensational "waves of crime." And for more than a week the public read criticism and denunciation of the police force.

It was charged that the police had become "demoralized," and various changes of administrative policy introduced into the department within the past eight months were blindly denounced.

The most important of these changes was that devised by Mayor Gaynor. Eight or ten years ago, every uniformed policeman in New York carried a club, and often used it freely in defending himself while making arrests. Abuses led to the abolition of this means of defense except for officers patrolling the streets at night. There were still undoubted abuses, however, and when Mayor Gaynor came into office, bringing well-thought-out opinions of police administration from his experience as a magistrate on the bench, he took a determined stand for more humane methods of making arrests, and strict holding of every policeman to the letter of the laws. Every case of clubbing was prosecuted, the plain legal rights of citizens or criminals upheld, and the Police Department began teaching its men new ways of defending themselves by skillful holds in wrestling whereby prisoners may be handled effectually and without doing them harm. Sentiment against the use of the club began to grow in the Police Department itself, it being recognized that clubbing was an unskillful means of defense, and that special athletic devices were more workmanlike.

Now, however, the newspapers published every chance opinion of discharged, retired and anonymous police officers who objected to the new

regulations. It was alleged that criminals had got out of bounds because policemen no longer dared club them into good behavior, and the editors, without paying much attention to the many good points of the new regulations, or trying to understand the merits of a settled policy applied to an organization of more than ten thousand men, set up a cry for the presumably “good old days” of Inspector So-and-So and Chief This-and-That, when every known criminal was promptly struck over the head on sight and thereby taught to know his place. If the files of New York journals for those days following the robbery are examined they will reveal a curious exhibition of pleading for official lawlessness and autocracy.



GEORGE S. DOUGHERTY
Second Deputy Police Commissioner

Another point of criticism centered on a new method adopted in the distribution of the detective force. This comprises more than five hundred men. For years they were all required to report at Police Headquarters every day, coming from distant precincts, and had an opportunity to see whatever professional criminals were under arrest. Then they went back to different precincts to work. This took too much time, it was found, and the old-fashioned "line-up" of criminals was chiefly a spectacle, the same offenders dropping into the hands of the police with more or less regularity. So detectives were re-distributed on a plan that attaches a proper number of plain-clothes policemen to each precinct, according to its needs, and in those precincts the men live and become acquainted with local criminals. Many of them work in sections where they were born, and detectives speaking foreign languages are assigned to foreign quarters.

The newspapers charged that red-tape had brought the Police Department to such a low state that young detectives had no idea what a real criminal looked like, and urged the restoration of the old system, with its picturesque "line-up."

In the days of Inspector Byrnes, when practically all the banking of the city was done around Wall Street, the police established a "dead line" beyond which criminals were supposed not to operate. In its day, the "dead line" was real enough, undoubtedly. But it was not necessarily an ideal police measure, and the growth of the city has long made it a mere memory, living only in newspaper tradition. To-day, banking extends as far north as Central Park, and millions upon millions of dollars are being carried about daily by people of every sort. Despite the fact that the last loss of money from a New York bank through professional criminals (apart from fraud and forgery) dated back some fifteen or eighteen years, the newspapers seemed to agree that life and property were no longer safe in the city because this purely mythical "dead line" had been disregarded by the robbers.

There was other comment of the same character, and it had an immediate and grievous effect.

On the day after the robbery a chance remark about a safe in an East Side bank, coupled with the general excitement, led to a run of its depositors, chiefly people of foreign birth. The bank was solvent, and the run was

undoubtedly stimulated by gossip started by criminals for their own ends. But the frightened depositors insisted on drawing out their money, and exposing themselves to danger of robbery and assault. The situation was met by careful police co-operation.

About six months before the taxicab robbery, the New York legislature put into force a measure known as the "Sullivan law," providing penalties for the carrying of pistols and concealed weapons. This is unquestionably a wise measure fundamentally, and one that was badly needed for police administration and public safety. It is perhaps open to certain modifications, to be made as actual conditions are encountered in practical working of the law. Newspaper opinion drew a connection between this law and the "wave of crime," and its repeal was urged, so that every citizen might arm himself as he pleased. Hundreds of persons who had felt safe in going about their business unarmed now applied for permits to carry pistols.

Fortunately, a sensation does not last long in New York.

Though the Police Department felt this criticism keenly, and was hampered by it, pressure began to slacken in about a week. Other sensations came along. There was nothing to publish about the taxicab case, as police information was withheld for good official reasons. Presently the town ventured to joke about the case. At an elaborate public dinner one night, among other topical effects, a dummy taxicab suddenly scooted out before the guests, held up a dummy police commissioner, took his watch, and scooted away again. The diners laughed, and that was fairly representative of the town, which was now ready to have its joke about the crime, too. Had there never been any further action by the police, the case would have quietly dropped out of sight. But fortunately there was police action, and with that we shall now deal.

CHAPTER II

HOW THE CRIME WAS HANDLED BY THE POLICE—ON THE TRAIL

Now, let us follow the police story. We will begin at the very beginning, watch the incidents and character unfold, and give quite a little attention to the technical methods by which results were arrived at. For the story is a study in clean, straightforward detective work, and that work ought to be better known by the public, so that intelligent public opinion may back up honest police effort.

The story starts with a burly, genial man, sitting in a big office at Police Headquarters. The office is that of the Second Deputy Police Commissioner, and the man is the Commissioner himself, George S. Dougherty.

Commissioner Dougherty dominates the story. The taxicab robbers were caught by his methods, plans and supervision, backed by the splendid team work of the men under him. His own sources of information supplied the clues, and his personal skill in examining criminals brought out the confessions that saved the city the expense of trials with all but one offender. It is far from the writer's wish to indulge in hero-worship, however, so these details will appear in their proper place in the narrative.

George Dougherty has had nearly twenty-five years' experience in criminal work in New York, and over the whole country. Until his appointment by Mayor Gaynor in May, 1911, he was connected with the Pinkerton organization. Bank and financial crimes have long been his specialty, so the taxicab case fell right into his own province. He knows the ways of forgers, bank sneaks, swindlers, burglars and "yeggmen," and is personally acquainted with most of the criminals in those lines in and out of prison. He has also had much to do with protecting the crowds at races, ball games, aeronautic meetings and other big gatherings. As executive head of the detective bureau, five hundred plain-clothes policemen scattered over

Greater New York cover all crimes of a local and routine nature, and are subject to his call when a special case like the taxicab robbery comes up for his personal attention.

On an ordinarily quiet morning at Police Headquarters, there will be a steady stream of people passing into Dougherty's office. Several assistants guard the doors leading from two ante-rooms, and marshal the visitors. Now a group of detectives enters and hears a talk on methods. Then two detectives come in, make a report and receive further instructions. Then there will be an interruption, perhaps, while an assistant soothes and sends away a crank who occasionally turns up with a purely imaginary affair of his own, and two more detectives pass in accompanied by a man and a woman who look just like the people one sees dining at a fashionable uptown restaurant. The woman's furs are magnificent, and her hat a costly Fifth avenue creation.

"A couple of taxpayers?" speculates the group of reporters, waiting outside to get a statement about some important case.

"Two of the cleverest check swindlers in the country," corrects a detective, and presently the reporters are called in, and Dougherty recites names, dates and facts connected with the gang to which these prosperous "taxpayers" belong, gazing reflectively out of the window as details come back in memory, and chuckling with the delighted journalists as the pithy slang and professional names of the underworld are jotted down on their pads. They fire a scattering volley of questions at him and depart, and then his secretary announces that the saloon-keeper who knows a good deal about the Blind Puppy Café case is outside, but refuses to talk to the police at all.

"Hullo!" is the Commissioner's off-hand greeting as the cautious saloon-keeper comes in, and in two minutes the latter is answering questions freely.

"Why, say!" he exclaims, "I'll tell *you* anything."

Then a humble little woman in a cheap hat and a long cloak is brought in. For more than an hour she has been waiting outside, with her eyes fixed patiently on the door leading to the inner office.

"Stand there," says the Commissioner, with gruff kindness, and he makes a formal statement about her husband, who has been arrested with a criminal gang, and is pretty certain to go to prison. He tells her what has been done in the case, and what will follow, and the little woman listens

mutely. When he finishes, her eyes fill with tears. But she makes no reply, nor any sound. The Commissioner winks fast as he looks out of the window again, and then says, sympathetically:

“That’s the best that can be done. But don’t you worry. Come in and see me again. Keep in touch with me, and don’t worry yourself. Come in and talk with me—come in to-morrow.” And she bravely wipes her eyes and goes out with her trouble.

The procession continues.

Police captains and detectives in squads, prisoners and witnesses in twos and threes, newspaper men in corps and singly, and occasionally a cautious gentleman who wants to see the Commissioner alone, and is anxious that nobody say anything about this visit to Police Headquarters—for he is an informant.

The First Alarm

The taxicab robbery took place on a quiet morning like this.

Suddenly, around eleven o’clock on Thursday, February 15, a brief message comes from the second precinct, stating that a robbery has been committed in the financial district. A little later there is a fuller report over police wires. The details are few, as will be seen by the general alarm that presently goes out over the city:

Police Department, City of New York,

February 15, 1912.

To all, all Boroughs—notify the patrol platoon immediately.

Arrest for assault and robbery three men:

No. 1, about 35 years, five feet eight or nine inches in height, 160 or 170 pounds, small stubby dark mustache, dark complexion, medium build, dark suit and cap, no overcoat.

No. 2, about 35 years, five feet ten inches in height, slender build, dark hair, possibly smooth shaven, light brown suit, no overcoat, wore a cap.

No description of No. 3.

Stole \$25,000 in five and ten dollar bills, contained in a brown leather telescope bag, 24 inches long, 16 inches square, from two bank messengers in a taxicab about 11 this a. m., at Park Place and Church Street, and escaped in a five or seven-seated black touring car, top up. Look out for this car, bag and occupants on streets, at ferry entrances, bridge terminals, railroad stations. Inquire at all garages, automobile stands, stables, etc.

If found, notify Detective Bureau.

Before noon, the Commissioner has postponed appointments, assigned routine business, and is engaged in an investigation that will keep him busy until that morning, twelve days later, when the first arrests are made, and the case is, in police parlance, “broken.”

Where do the police begin in such a crime? What do they start with when there is apparently so little to work upon?

In spite of the wide popular interest in police and criminal matters, the average citizen has no very clear idea. Even the newspaper reporter, following police activities every day, is not well informed in technical details. Some information is necessarily withheld from him, and he is a busy young man, with his own technical viewpoint, working hard to get his own kind of information.

This lack of knowledge leads to a feeling of mystery, helplessness and terror after a sensational crime, and to criticism of the police. They are at work, skillfully, honestly, diligently. But results take time. It would do little good to make arrests without evidence. The citizen's sympathies are aroused by brutal lawlessness, and he urges that somebody be caught and punished. If results are not at once apparent, he jumps to the conclusion that the police are “demoralized.” He would be startled if he could see how quickly and persistently the underworld takes steps to strengthen him in that conclusion, and use him to discredit the police.

Sixty detectives are immediately called into the case. Five of them go down to the scene of the robbery, with orders to work there until further notice. They make a thorough search of the neighborhood, following the route taken by Montani's taxicab, and questioning merchants, newsdealers, porters, truckmen and other persons likely to have information as eye-witnesses. They go through the streets that may have been taken by the escaping robbers, and work over the whole ground. This search through one of the busiest sections of New York in a busy hour, amid the excitement created by the crime, may appear like hopeless business. But, as will be seen presently, it yields important results. Other detectives search garages for the black automobile without a license number in which the robbers are reported to have got away. Four uniformed policemen on beats along the route taken by the taxicab are questioned. Other detailed inquiries of the same nature are started.

But the most important work of the first day centers at Police Headquarters, where a conference is held by Commissioner Dougherty and his assistants, and in the examination of Montani, the taxicab driver.

Strip all the labels off a suit of clothes and lay it before a committee of tailors. In a few moments certain points would be agreed upon. It may be a new suit, or an old one, a fine piece of tailoring, or a cheap hand-me-down. The committee could often identify the cheap suit and tell the name of its manufacturer, while with a seventy-five-dollar suit it might be possible to determine the maker's name. This holds true of many other lines of work, and it is particularly true of criminal investigation.

Who cut and made that suit of clothes?

The conference sat down to determine this, judging the robbery strictly as a piece of workmanship. Names of known bank criminals were brought up, one by one, and details gone over. It soon became clear that none of the men identified with bank crime were likely to have the brains, skill or organization to plan and execute so complicated a robbery.

The criminals had known the habits of the bank in conveying cash uptown. They knew the route, and were aware that the guard was only an elderly man and a seventeen-year-old boy, both unarmed. They had boarded the cab at the best point, and evidently made arrangements for stopping it. There was team work in every detail. It showed marked insight, for instance, to provide additional men to boost each assailant in at the doors. For young Wardle, the bank employee, had made a plucky attempt to shove his robber out and shut the door, and might have succeeded had there not been an outside man. Robberies are committed under exciting conditions. They sometimes fail because criminals balk. That outside man was there not only to help his "slugger" into the cab, but to *force* him in if he shrank, and make certain he did his work. Whoever planned such details, it was agreed at the conference, possessed more cunning than the ordinary bank criminal.

Montani is Examined.

When Montani, the taxicab driver, arrived at Police Headquarters, he was willing to talk, and seemed anxious to help the police in every way. He knew suspicion might be directed toward himself, but did not resent that.

He talked like a man confident of the truth of his story, and certain that he would be found blameless.

Montani is an Italian, from the northern part of Italy, about 30 years old, five feet six inches high, rather stout and thick-set, with very dark complexion. The striking feature of his countenance, his large, intelligent brown eyes. Commissioner Dougherty found himself thinking of Napoleon in connection with Montani.

The first examination lasted all afternoon, Montani going out to lunch with the Commissioner. Hundreds of questions were asked bearing on the robbery, the appearance of the criminals, and Montani's past and personal affairs. The story was gone over again and again, and different questioners relieved each other. Yet the taxicab man never lost his temper or patience, and did not contradict himself in any important particular.

Montani had been in this country since the age of twelve, it appeared, had a wife and two children, and was the owner of two taxicabs operated from a stand at a hotel near the bank, whose money he regularly carried. He had owned three cabs, but lost one through business reverses. In fact, he had passed through money troubles, and his story excited sympathy. Starting originally as a truckman for a salvage company, his ambition and intelligence had won him such confidence that this company lent him money to set up trucking for himself. Still more ambitious, he had become a taxicab proprietor. Through the trickery of an ill-chosen partner, however, he has lost some of his savings. He seemed a little bitter about this, and it was a circumstance not likely to escape an expert police examiner, for the loss of money through fraud, coupled with temptation, is often the starting point in crime. The Italian's former employers spoke highly of his character when questioned by detectives. He gave the names of chauffeurs who had worked for him lately, and of business people who knew him, and careful investigation failed to disclose any suspicious circumstances. Montani quite won the newspaper men—so much so that, when he was discharged in court a few days later for apparent lack of evidence, the newspapers criticised the police for having held him at all.

And yet, before that first night, Montani himself, largely through simple answers to questions, had become so involved that there was ground for holding him under arrest.



EDWARD P. HUGHES
Inspector in Command of Detective
Bureau



DOMINICK G. RILEY
Lieutenant and Aide to
Commissioner Dougherty

In the questions and cross-questions, the checks and counter-checks of a skillful examiner, there are possibilities little suspected by those not familiar with that kind of work.

Montani had slowed down his cab at the point where the robbers boarded it. He said that an old man had suddenly got in front, and he had slackened speed to avoid running over him. But detectives along the route found eye-witnesses who had seen the robbers board the cab, and who could testify that there had been nobody in front of the vehicle.

Both of his cabs had stood in line near the bank that morning, the one driven by himself being second, and the other, in charge of an employee, was first. When the call came from the bank, Montani answered it himself out of his turn, sending the other cab uptown, as he explained, to have some tires vulcanized. But it was not a good explanation.

He said that as soon as the robbers left his cab he had raised a cry for help. But eye-witnesses were found who denied this.

Instead of running north after the robbers' automobile when he had taken a policeman aboard his cab, he ran south, away from it. This action, he maintained, was taken under orders from the policeman. But the latter denied that.

He was not able to explain how the robbers had known where to post their automobile so it would be waiting at the spot where they finished their work.

Interest centered in this mysterious black automobile without a license number. For, though Montani was an experienced chauffeur, and his replies to other questions showed that he had seen both the rear and the side of that car, he was unable to tell its make.

Meanwhile, it was learned that three men had hurriedly boarded an elevated train near the scene of the robbery shortly after, not waiting for change from a quarter. The ticket-seller was unable to describe them, but connected them with the robbery when he heard about it.

Montani was held in the custody of the Commissioner that night, to be put through further examination in the morning. But long before morning the police were working on an entirely new development.

The First Direct Clue

The law-abiding citizen goes around New York with little knowledge of the crowding underworld all about him. It is perhaps just as well that he knows nothing of the lives and morals of hundreds of people who elbow him on the streets, sit beside him in the cars, and scrutinize him with a strictly professional eye in many places.

Nor has he any clear conception of the relations that a good police officer maintains with members of this underworld. It is a world just as complete as that of business or society, however, and much of the time of a detective or police official is spent keeping track of people in it, forming acquaintances and connections in various ways, and establishing the organization of informants that will help in the detection and prevention of crime. A good detective is like a good salesman—he keeps track of his “trade.”

Shortly after midnight of the first day, Commissioner Dougherty received a message over the telephone that sent him uptown to meet an informant. At two o'clock in the morning of Friday, February 16, he and this person had a talk at a fashionable uptown hotel. Indeed, most of the meetings with informants during this case were held at two well-known hotels, perhaps the last places in the city that anybody would connect with such conferences.

Informants are not always right, nor always possessed of useful information. But this one had the first real clue.

On the afternoon of the robbery, it was learned, a fellow known as “Eddie Collins” had come to his rooming house, on the lower West Side, told a woman with whom he lived, known as “Swede Annie,” to pack up and be ready to leave the city in a hurry, and presently disappeared with her. He was also reported to have a large roll of money. With a rough estimate of the size of this roll, given by the informant, and a dummy roll of “stage money” made up for the purpose, the police were able to judge that Collins must have had between \$3,000 and \$5,000. That would have been his probable share in a division of the stolen currency among five men.

The house where Collins had lived was kept by a Mrs. Sullivan. Steps were at once taken to “surround” this woman, as the operation is known technically. For before a possible source of information like Mrs. Sullivan is followed up, it is necessary to know something about it. The person in

question may be criminal, or in league with the underworld. On the other hand, he or she may be quite innocent, and willing to aid the police. The “surround” is an interesting operation. It is often made without the knowledge of the person investigated. In many cases it takes time.

Mrs. Sullivan came through the ordeal handsomely.

She proved to be a wholesome, hard-working landlady, keeping a house that sheltered occasional suspicious characters, but entirely honest herself. She was not only able to furnish information about her late lodgers, but willing.

“Sure, it’s a good deal I know about that Collins, as he calls himself,” she said, “and mighty little that’s good.”

It seems that about two weeks previously Collins had offered to pay the landlady if she would appear in a Brooklyn court and testify to the good character of a criminal named Molloy, who was being held for trial on a charge of robbery.

“They’re paying fifteen to twenty dollars for ‘character’ witnesses,” said her lodger.

“And do you think I’d take the stand and perjure myself swearing for a man I never heard of?” asked the indignant landlady.

“Oh, that’s nothing to some of the things we do,” was the reply.

Several days later, while she was putting some laundry into Collins’ bureau drawer the landlady caught sight of two new blackjacks. She asked Collins what he was doing with such weapons.

“Aw, we use them in our business,” he said. Then, with the confidence often bred in criminals by success, he told her he knew a gang that was planning to rob a taxicab that carried money uptown to a bank every week. Mrs. Sullivan questioned him as to details, and he assured her it would be an easy job.

“For we’ve got it all fixed with the chauffeur,” he said.

At that point, however, like many an honest person who might aid the police with information, Mrs. Sullivan let the matter drop out of her mind. It is a simple thing to mail a letter or telephone to Police Headquarters, giving such information, and the experience of the Detective Bureau is such that the information can be investigated without involving innocent persons. But perhaps Mrs. Sullivan concluded that, in a big city like New York, it is

well for people to keep their mouths shut. Or maybe she decided that Collins was merely boasting.

On Friday, less than twenty-four hours after the robbery, a “network investigation” was begun.

Sixty detectives searched that part of the city where Collins and Annie had lived, seeking further information. Photograph galleries and other places were investigated on the chance of finding pictures. Denizens of the underworld were talked with casually. Professional criminals, prostitutes, dive-keepers, receivers of stolen goods and other shady characters were brought before Commissioner Dougherty in couples and half-dozens for quick cross-examination. By Saturday evening the police had some highly important information.

It was learned that Annie had been seen going away on the afternoon of the robbery in a taxicab, accompanied by two men, one of whom was Collins, and the other unknown. Good descriptions were secured of Annie and her sweetheart, especially of her hat, which was a cheap affair, but conspicuous by reason of a row of little red roses. It was also discovered that Collins had been a boxer, that he hailed from Boston, and that his real name was Eddie Kinsman. Finally, the police secured two photographs, one an indifferent picture of Kinsman, and the other an excellent portrait of Annie. These were quickly put through the department’s photograph gallery, where there are facilities for making duplicates in a hurry, and more than a hundred copies were soon ready for work which will be described in its proper place.

The trail now seemed to lead to Boston. At all events, further information was to be secured there. And here came in a little refinement imparted by Commissioner Dougherty’s experience with the Pinkerton forces. For where this private detective organization works unhampered over the whole country, the official police forces in most cities confine their searches to their own territory. When it is believed that criminals have left town, as in this case, a general description is telegraphed to other cities. Dougherty’s method, however, is always to send a man from his own staff, with detailed instructions. There are no local boundaries for him.

Late on Saturday night Inspector Hughes, of the Detective Bureau, slipped out of headquarters with Detective O’Connell, and took a train for Boston. Their departure was kept strictly secret. They bid good night to

associates, saying that they expected to be up and at work again early next morning, and until their return on Monday everybody who asked for the Inspector was told that “he is usually around the building somewhere.”

Montani Points Out “King Dodo”

All through Friday and Saturday, while the network investigation was going on, Commissioner Dougherty continued his examination of Montani.

Some important information against him now came from outside.

It developed that Montani had been involved several months before in an insurance case, claiming indemnity for a burned automobile under a policy. He had presented, as part of its value, a bill for repairs amounting to \$1,348. The insurance company, however, had found that this bill was fraudulent, that the repairs had never been made, and had obtained a statement to that effect from the Italian chauffeur. Out of pity for his wife and two children the case was not pressed against him. Now that he was involved in another crime, however, the insurance people came forward and laid the facts before the police.

Of course, Montani knew nothing about this new development.

For two days the chauffeur was questioned at intervals, and the inquiry centered chiefly on the knotty points in his story of the crime. He was particularly pressed for better explanations of the slackening of his cab when the robbers boarded it, but stuck to his original statement about a man getting in front of the vehicle. He described this person as an old man, and said he must have been in league with the criminals. As the police had good evidence that there had been nobody in front of the taxicab, however, this point was returned to again and again, and toward night on Saturday, February 17, the little chauffeur began to feel the strain.

On his way to supper that evening with men from the Detective Bureau, Montani was taken through the Bowery. Suddenly he stopped, dramatically, and exclaimed:

“There! That is the old man who got in front of my cab!”

His finger indicated a Bowery character as typical as anything ever seen in melodrama—a ragged little old figure with an amazing set of whiskers,

engaged in picking up cigar butts along the gutters. He was immediately taken to headquarters.

No detail of his work interests Commissioner Dougherty more keenly than his study of the many picturesque characters who turn up as an important case unfolds. He has a ready appreciation of everybody who appears, from the society lady who lost her jewels to the typical Bowery loafer. He is as ready to look at facts from a criminal's point of view as that of an honest man. He has often gone half across the country to get acquainted with a good burglar, and in this warm human interest lies the basis of his skill as an examiner of suspects. These details are set down, not in glorification of Dougherty, but for the guidance of every police officer interested in his methods.

The moment Dougherty laid eyes on this new character, with his magnificent whiskers, he gave him a nickname.

"King Dodo!" said the Commissioner, and that by that name he was known in so far as he figured in the case at all. "King Dodo" proved to be entirely innocent, and nothing more than the victim of a chance move of Montani's, who evidently thought that he ought to produce something tangible to back up his assertion that the cab had been intercepted by an old man. "King Dodo" established a perfect alibi, proving that he had been elsewhere at the time of the robbery, and after being questioned and the truth of his story established, he was released, there being no reason for holding him.

"I feel safe," said the Commissioner solemnly, "in paroling you on your own responsibility, to appear again if wanted."

That may have been a heavier responsibility than had been put on his shoulders in years. But he rose to it. Two days later a decently dressed, clean shaven, elderly gentleman came in and asked for the Commissioner. He was "all dolled up," in police parlance, and looked like a retired small shopkeeper. The staff did not recognize him for a moment. But it was "King Dodo," doing his best to fill the part of a minor figure in the great taxicab mystery. There being nothing for him to do, he dropped back into private life.

On his Sunday visit to Boston Inspector Hughes talked with Chief Inspector Watts of that city, learned where Kinsman lived, and that his family was a respectable one; found a bright patrolman named Dorsey who

knew Kinsman, and gave more information about his personal appearance, habits and career as a boxer, desertion from the Navy, and so forth, and made arrangements to have the Kinsman home watched so that news of his return would be secured immediately. It was clear that Kinsman had not returned to Boston.

Discovery of Kinsman's Trail

As soon as Inspector Hughes returned from Boston, on Monday morning, the Commissioner took steps to question the crews of every train that had left New York since one p. m. on the day of the robbery.

Just the other afternoon the writer sat with a squad of young detectives at Police Headquarters and heard a talk on methods given by Dougherty, and one point clearly brought out was the usefulness to the thief-catcher of routine information.

He began by relating an amusing incident. Some days before a detective had turned up at headquarters for instruction, and naïvely asked the Commissioner to lend him a pencil and a slip of paper, so he could make some notes. Another detective was found who had only a hazy idea of the location of New York's telephone exchanges. Taking these as his text, the Commissioner explained the value to every police officer of what might be called "time-table" information—knowing the depots and ferries, what roads run out of them, the cities reached, the number and character of trains, the general methods of dispatching trains, and so forth. The Commissioner himself is as well informed on such matters as any railroad man, and thoroughly familiar with routine methods in many other lines of work and business. How such knowledge can be employed was shown by the next move in the taxicab case.

Detectives were sent to every railroad terminal to secure lists of trains, learn the names of the crews, and make out schedules of the time when each crew would be back in the city. Then each man was found and carefully questioned. His memory could be helped by pictures of Kinsman and Annie, and by intimate details of personal appearance and manner.

The search bore fruit, though it took time.

On Wednesday Detective Watson, who was a railroad engineer before he joined the police, found that Train No. 13 on the New York Central had taken on three passengers answering the descriptions on the afternoon of the robbery. They had boarded the train at Peekskill, the town to which, as it was subsequently learned, they had ridden in a taxicab. The conductor's attention had been drawn to Annie by her smoking a cigarette on the sly in the toilet of the day coach. He remembered her high cheek bones, and the black velvet hat with its little roses, and the athletic build of her men companions, who both appeared to be boxers. It was also established that the trio had gone to Albany, for one of the trainmen distinctly remembered helping Annie down at that station.

“Plant 21” Is Established

Monday, February 19, was an important day in more ways than one.

While the train investigation was going on, it was learned that a woman known as “Myrtle Horn,” an intimate of Annie's, had moved to a lower West Side rooming house, taking Annie's trunk with her, as though Annie expected to return to the city. After a preliminary survey, this house was visited by Commissioner Dougherty in person. He explained that he was a contractor, about to build a section of the new subway, and that he was looking for a quiet room at a reasonable price where he might have some of the comforts of home. After a little talk with the landlady it became clear that she was honest and trustworthy, with no information of the new lodger who had taken her front room in the basement. Arrangements were quickly made to put this house, inside and outside, under constant surveillance.



GENE SPLAINE



EDDIE KINSMAN



GENO MONTANI



“SCOTTY THE LAMB”



JOHN MOLLOY

Along in the evening Mrs. Isabella Goodwin, a police matron, was installed there. The Commissioner brought her, and carried her bundle. The landlady and the matron had never seen each other in their lives, but kissed ostentatiously, and made considerable fuss on the chance of being overheard. Mrs. Goodwin was “planted” as the landlady’s “sister,” who had come from Montreal to live with her and help in the housework until she could find a position in New York. The Commissioner grumbled a little about her stinginess in refusing to pay an expressman to bring her bundle, and then took his departure, explaining that the train had been late, and the baby was not well, and his wife, Aggie, would be worried about him, and so forth. Mrs. Goodwin established herself in a room at the rear of the basement, handy to that occupied by Myrtle Horn, and kept her eyes and ears open as she went about the housework, slipping out to report when she had any information, and receiving instructions.

Outside surveillance on this house was conducted from an empty store across the street. Arrangements for the use of such property are usually made by the police without difficulty, though occasionally a close-fisted owner expects rent. Blinds were put up over the windows, peep-holes made, and a few hammers provided, with some nails and boards. Then six of the

best “shadow men” in the Detective Bureau were stationed there. They made a little noise occasionally, in “getting the store ready for a big firm moving up from downtown,” and watched the house day and night. Whenever Myrtle went out she was followed. If she had visitors, they were investigated. This store was known by the code term of “Plant 21,” so that reports could be sent without disclosing police information.

Montani Goes Free

On Monday, too, Montani was arraigned in court, and discharged for what appeared to be lack of any evidence against him.

At this point the Commissioner took the liberty of fooling the newspaper men for the good of his case.

Newspaper criticism for three days had been particularly severe. Editors made many charges, and were fertile in suggestions as what ought to be done to reorganize the presumably “demoralized” police department. The present writer feels confident, however, that a careful search of the files for those days will disclose hardly any suggestions likely to be at all helpful to public servants in the discharge of duty. Many questions with no real bearing on the case had been brought up by the journalists, and the Commissioner, who was patient in answering the newspaper men, began to be a little tired.

On Sunday night his big office was filled with reporters. They sat about everywhere. He had admitted them because he wanted them to see that he was working. From time to time they quizzed him in this fashion:

“Is it true that you and Commissioner Waldo have quarrelled?”

“Is Waldo going to resign?”

“Do you favor the Sullivan law against pistols?”

“Will the ‘dead line’ be maintained now?”

“Hadn’t the daily ‘line up’ of criminals ought to be restored so that detectives will know crooks when they see them?”

“Hasn’t Mayor Gaynor tied the hands of the police?”

And so forth, and so forth, and so forth.

Suddenly, on Sunday night, Dougherty turned and read the newspaper men a lecture. He said that he wanted them to understand that he was no spring chicken at his business, that he was working eighteen hours a day, and that he knew he would show results if the people would only be patient, and give him time. His only recommendation in the way of new laws or reforms was for a statute that would enable the police to put known criminals, without occupation or visible means of support, at work mending roads. He outlined a plan which, rather strangely, did not get any attention in the newspapers at all. His idea of dealing with idle criminals, he said, was to have a cart, with commissary and sleeping quarters for twelve men. As soon as twelve idle criminals with records had been sentenced, they would pull this cart out of town themselves, under guard, and go to work repairing roads. If that plan were adopted, New York would not only be as free from criminals as the District of Columbia, where a similar measure is enforced, but the roads all around the city would be so well cared for that they could be used as roller-skating rinks.

The newspapers next morning were quite certain that Commissioners Waldo and Dougherty had quarrelled, and when the journalists went down to report Montani's examination in court they were decidedly partial to the taxicab man.

Dougherty had told the newspaper men beforehand that he had evidence enough to have Montani held for trial. He had made very positive statements about this. Montani would be arraigned, he predicted, and if discharged on one count, would be immediately arrested on something else. If he was discharged on that, he would still be arraigned on further charges.

It needs no very brilliant imagination, therefore, to picture the effect upon the newspapers when Montani, after being arraigned on the doubtful points in his own account of the crime, and those not too vigorously pressed, was discharged, with comment by the court upon the flimsiness of the police case. There was one striking discrepancy in the evidence presented at that examination which, if pressed, should have resulted in the holding of Montani for trial. He still insisted that he had stopped his cab because an old man had got in front of it, but this was denied by a witness. That point was permitted to pass by Lieutenant Riley, who appeared for the police. Montani could have been re-arrested on charges based upon his attempt to defraud the insurance company. But he was permitted to go free. That

course had been decided on at Police Headquarters after some difference of opinion.

The newspapers were now more pessimistic than ever in their comment. They contrasted this outcome with Dougherty's promises that the chauffeur would be re-arrested. It was taken as a confession of police incompetency and bewilderment—which, as will be seen in its proper place, was very useful in its way. Montani went free, and was jubilant, calling on the Commissioner next morning to thank him. But from the moment he left court until he was arrested again the Italian chauffeur never got out of sight of the Police Department.

What Developed on a Busy Tuesday

It was on the day after Montani's release that Commissioner Dougherty began to uncover more interesting characters in the taxicab drama.

Bit by bit, through points supplied by informants and persons who had come in contact with him in various ways, a very good working knowledge of the fugitive Kinsman was pieced together. It appeared that he had come to New York the previous summer, from Boston, and after a brief career as a boxer, had gone to work in a Sixth avenue resort known as the "Nutshell Café," where he was a waiter. Among his associates there had been two characters who invited further inquiry.

The first of these was a fellow called "Gene," described as having a "parrot nose," and a criminal record. He had been a close pal of Kinsman, and had also introduced another intimate, a wily little Italian called "Jess," who had formerly owned a thieves' resort which he called the "Arch Café." A good description of Jess was secured.

There was some delay while the Commissioner "surrounded" this last-mentioned resort to find out if it was a place where any information might be obtained openly. The question was decided in the negative. So a plain-clothes man was quietly "planted" there to pick up information.

When a criminal is arrested (or "falls") it is customary in the underworld to raise a fund for his defense. The Arch Café was a center for the deposit of such "fall money." It was learned that a hundred dollars had been raised for the defense of a man named Clarke, alias "Molloy," under arrest in

Brooklyn for robbery. This was the same Molloy to whose fine character Kinsman had asked his landlady to swear in court. The Italian named Jess had taken charge of Molloy's defense fund, but squandered it in a spree. Later, making it good, he had sent it over to Molloy's relief by Kinsman's pal, "Dutch," and an Italian known as "Matteo."

District inspectors of police were then called upon to find a detective who knew Jess, and an Italian plain-clothes man, Antony Grieco, who had grown up in that part of New York where Jess had kept a café, and who knew the latter well, was detailed with another detective to look him up and keep him under surveillance. They found that Jess, whose last name was Albrazzo, had headquarters in a tough resort in Thompson street, kept by an Italian named James Pasquale, better known as "Jimmie the Push." From that time Jess was kept "on tap," to await further developments.

Then the Commissioner undertook to find out more about the character called "Gene." Working in New York, as waiters and bartenders, were many members of a criminal band known as the "Forty Thieves of Boston." The Commissioner called in all of them that he could find, and sounded each for information about this "Gene." After the time of day had been passed, the talk would turn on members of the band and criminals in general, and after curiosity had been excited, "Gene" would be referred to casually. If the party interviewed said he knew "Gene," the Commissioner would probably be sceptical, ask his last name, press for details of appearance and habits, and then pass to some other subject.

It was found that "Gene's" last name was Splaine, that he had served a term in prison in Boston as a boy, and that, by his general description, he must be the third fugitive accompanying Kinsman and Annie. When Detective Watson got better descriptions of the third man at Albany, and comparisons were made with sources of information in New York, it became practically certain that Gene Splaine was with Kinsman.

Annie Shows at "Plant 21"

It was on this day, too (Tuesday, February 20), that "Swede Annie" suddenly stepped into police view, *wearing a new hat*. She turned up quietly at the house where Myrtle Horn had moved with her trunk, and

began living in the front basement room. Matron Goodwin and “Plant 21” immediately reported her presence, and from that time the shadow men across the street had something to do besides driving nails. For whenever Annie or Myrtle went out of the house they were followed.

Shadowing is a highly interesting kind of police work, at which some men have exceptional ability.

The general conception is that of a detective following closely behind the suspected person, with his eyes glued to him, and cautiously crouching behind lamp-posts and trees when the victim turns suddenly. But that is far from the real thing. The work is done in ways altogether different. Shadow men operate in pairs, as a rule, and keep track of their party from vantage points not likely to be suspected. They dress according to the character of the case, always in quiet clothes, changed daily, and with absolutely no colors that will attract attention or lead to recognition through the memory. They know how to follow when the person under surveillance rides in cabs, cars or trains, to cover the different exits from a building into which he or she may have gone, and to loiter several hours around a given neighborhood, if need be, without attracting the attention of honest citizens.

This work is done by shifts. The operators relieve each other almost as regularly as office employees, no matter how far the trail may have taken them. They are in constant touch with headquarters for the purpose of making reports and receiving instructions.

In this branch of detective work, as in many others, the chief requisite is resourcefulness. The detective of fact wears little disguise apart from clothes that fit the surroundings he moves in. But he has an instant knack at accounting for himself as a normal character who has happened quite naturally into the scene. Ready wits do the trick—not false whiskers. Thus it came about that whenever Annie and Myrtle were hungry, and sat down in a restaurant, what they said was noted by a couple of fellows at another table, who quickly made a party of the chance patrons they found there, discussing wages or the suffragettes. Or if Annie used the telephone in a drug store, a polite young man turning over the directory said to her, “Go ahead, lady—I’m in no hurry,” and listened.

At the same time, Matron Goodwin was reporting conversation from inside the house. It appeared that Kinsman had sent Annie back to the city after buying her a new hat and giving her \$125. He promised to write soon,

but did not tell her where he was going. Toward the end of the week, as no letter arrived, Annie began worrying, and was talkative. She feared that Eddie no longer loved her. She reproached herself for letting him go without taking her along, and spoke of setting out to find him.

The Trail Is Taken Up

It was now Wednesday, February 21, and all the careful detail work began to come together.

It was this day that Detective Watson found the crew of Train No. 13, on the New York Central, which had taken Kinsman, Annie and Splaine aboard at Peekskill the afternoon of the robbery after they had ridden out of New York in a taxicab to avoid possible police surveillance at the railroad stations. Commissioner Dougherty dispatched Watson to Peekskill and Albany with thorough instructions. His motto in working out a case is, "Supervision is half the battle."

"When you get to Albany," he said, "go to that big hat store on Broadway near the station. I'll bet that's where Annie's new hat was bought—they sell the best millinery in the country outside of New York."

Nothing important was learned at Peekskill, but at Albany, sure enough, Detective Watson found the saleswoman right in "that big hat store" who had sold the new hat, and secured Annie's discarded headgear. The new hat had cost twenty-five dollars. The old one looked as though it might have cost ninety-five cents—a "Division Street Special." Its black velvet was of the cheapest grade, the famous little red roses proved to be, on close inspection, nothing more than little loops of pink cotton cloth, and the general state of the hat indicated that it was about time Annie had a new one. This interesting "bonnet," however, seemed just then more handsome than any costly article of millinery ever smuggled over from Paris. It was immediately sent to New York by express, with a copy of the sales slip covering the purchase. The saleswoman was able to add one or two details of description, and remembered how, after the woman had selected a hat, the two men had joked about who was to pay for it.

"She's your girl," said Splaine, and so Kinsman had paid the bill with five five-dollar bills.

Nothing could be learned as to the direction in which the two men meant to travel. Detective Watson now began a search among train crews running out of Albany, and Commissioner Dougherty, in New York, got the Albany ticket-sellers by long-distance telephone. His knowledge of how railroad tickets are sold, accounted for, taken up, cancelled and checked by the auditing department made it possible to sift matters down to the strongest kind of probability. After considerable telephoning, aided by Detective Watson on the spot, it was determined that Kinsman and Splaine had been the purchasers of two consecutively numbered tickets for Chicago sold together on Friday morning, twenty-four hours after the robbery, and that they had gone west on Train No. 3, leaving Albany at 12:10 p. m. Their tickets were available for that train, and the conclusion was strengthened by calculating Annie's movements. For it was found that she had come back to New York the same day, between four and five in the afternoon. She had kept out of sight until she appeared at Myrtle Horn's lodging and was reported by Matron Goodwin and "Plant 21" on Tuesday. But she must have taken a train from Albany about the time that the men were starting for Chicago, reaching New York at 3:45 p. m.

Commissioner Dougherty felt that the chances of finding his men in Chicago were so good that, without wasting time in an investigation of the crew of Train No. 3, he put Detectives Daly and Clare aboard a Chicago train that same night. Kinsman and Splaine would both find congenial company among the pugilists in Chicago.

These detectives were given names to conceal their identity, and ordered to report under the code term of "Orange Growers" to eliminate all flavor of police business. They received detailed instructions about where to go and what to do. Again the Commissioner covered the trail when it led out of New York by sending capable assistants, instead of merely wiring the police in other cities. Before the "Orange Growers" departed, the "boss" gave them a little talk about expenses.

The detective attached to a municipal police force is very often hampered by fear of making unusual expenditures. Accounting routine is strict. Telegrams are often limited to the minimum of ten words where a hundred are needed to send a working description or report. The long-distance telephone is used as a luxury, and in many instances where the plain-clothes man can get valuable information through an informant he pays the shot out

of his own pocket because there is no other way of paying it, and trusts to the chance that this private investment out of his salary will help him “break” a knotty case.

Commissioner Dougherty told the “Orange Growers” that they would be kept on this trail if it led all around the world. They must not consider expenditure when there was vital information to put on the wire. He expected them to turn to the long-distance telephone whenever they needed new instructions in a hurry. Briefly, he took the blinders and shackles off them, and sent them out to do good work, and the outcome justified this far-sightedness.



JESS ALBRAZZO



MATTEO ARBRANO



JAMES PASQUALE



BOB DELIO

At that period of the winter trains were delayed everywhere by storms, so the “Orange Growers” had opportunities to make inquiries at stations and railroad restaurants all along the line to Buffalo. They were in search of their “brother,” who was described in terms of Kinsman’s personal appearance, and was supposed to be on his way somewhere with another man. At Syracuse an observant waitress remembered their “brother” distinctly, having served both the men when their train stopped for supper. Finally, the two “Orange Growers” got snowed up in Michigan for a time, and there we will leave them for the present.

Montani Quizzed Once More

By Thursday many loose ends of the case were being brought together so effectually that the outlook seemed exceedingly bright.

But only to the executive circle in Dougherty’s office.

Outside, all was dark. Newspaper criticism had become more caustic than ever, and the public, after the ingrained habit of New York, was turning its attention to fresher news sensations.

At a big annual dinner of police officials held that evening, February 22, the atmosphere of gloom resting upon the department was most tangible. The fourteen hundred guests, who were chiefly police inspectors, captains and lieutenants, felt that a stigma lay upon the service with which they were identified. They had no means of knowing, of course, that one week from that night the gloom would have lifted, criticism be turned to praise, and that policemen generally would be, as a witty lieutenant put it, “back to our official standing again—which never was so very high.”

Montani had called at Police Headquarters repeatedly, accompanied by his unseen shadows. He professed to be anxious to furnish further information, if it lay in his power, and the Commissioner chatted with him cordially, leading him to believe that he no longer rested under the slightest suspicion.

On Friday Dougherty made an interesting effort to “break” Montani.

He now had a minute physical description of Kinsman, as well as two photographs of him. The chauffeur was asked to describe once more the man who had sat upon the cab seat with him. The questions went over details from head to foot, and were prompted by details of Kinsman's real appearance.

Montani said the man had large brown eyes, which was true.

He remembered that he had talked with a good American accent, and used words not common to the criminal, which was also more or less true.

He suddenly recalled a gold-filled tooth in the robber's upper right-hand jaw, a point already furnished by informants.

In fact, as this new examination went on, it became clear to the Commissioner that Montani was actually describing Kinsman, changing only one detail. He said that the robber had had a dark mustache, while it was certain that Kinsman had been smooth-shaven.

Suddenly the Commissioner tried what is known as a "shot."

The examiner in such an inquiry is often in possession of incriminating evidence. Instead of producing it bluntly as evidence, however, he will perhaps let it slip out bit by bit, as though by awkwardness, meanwhile maintaining an appearance of absolute confidence in the suspect's integrity. A classic example of this device is found in the Russian writer Dostoieffsky's "Crime and Punishment." The skillful "shot" is usually far more disconcerting than evidence produced openly to overwhelm. For the suspect assumes that the examiner really knows nothing, and has merely blundered. So he is on his guard outwardly. But he also worries inwardly, and this trying conflict between inner doubt and the need for keeping up outer calm will often break him down completely.

Dougherty's "shot" was a photograph of Kinsman.

By pre-arrangement an assistant came into the office and began turning over some papers on the Commissioner's desk. The photo of Kinsman popped out where Montani could see it plainly, and then was hurriedly put out of sight again. The Commissioner scolded his assistant, and the latter stood shamefaced and silent.

But in this instance the device failed.

Montani not only betrayed no interest in Kinsman's picture, but took the awkward assistant's part, and asked the Commissioner not to scold him.

Montani had planned his crime, fitted the plan with men, laid out every detail in his mind, and arranged his story beforehand. He expected to be arrested, and said so. He admitted that there were inconsistencies in his story, but hoped to clear them up. He had discussed the crime with Jess and Dutch, and had not been seen in the company of the other criminals. So, having settled on his story, Montani stuck to it without variation under every form of pressure. Others forgot what they had arranged as their defense, or departed from it, or broke down and confessed. But not Montani. He alone went to trial, and stuck to his story until the end.

The “Orange Growers” in Chicago

When Daly and Clare, the two New York detectives working as the “Orange Growers,” arrived in Chicago, they went to Police Headquarters in that city, made inquiries about Kinsman and Splaine, and secured the aid of Chicago detectives. Then they put up at a hotel where, by arrangements with the house detective, they occupied a room on the second floor handy to a little-used stairway leading to a side street, which would make it easy to slip in and out without going through the lobby. On the trip from New York both of them had neglected shaving, and Daly was an especially tough-looking citizen, for his beard grows out stiff and bristly, with black and red intermixed, and a little green to help the general effect. With suits of old clothes and sweaters they were so little like their official selves that for several days, though they went rather freely around resorts frequented by crooks who knew them in New York, they were not recognized.

The “Orange Growers” now became a pair of hardened “yeggmen,” or bank robbers, and for three days were busy visiting thieves’ haunts all over the city, from the Levee district to the Stockyards. It was found that Kinsman and Splaine had put up at a high-class boarding house in a fashionable residence section. Kinsman seemed to be doubtful about the impression Splaine might make there, though in the opinion of the police Splaine was by far the more intelligent of the pair. So he took the landlady aside and asked her, privately, if she had objections to a prize-fighter in her house. The landlady replied, “Why, no! if he is a gentleman—many prize-fighters are just like other people!” Thereupon, Kinsman undertook that Splaine should behave himself. He also wanted to know if valuables were

safe there, and the astonished landlady assured him that her house was like a home, that the guests were like one big family and seldom locked their doors, and that Mr. Smith, well known as an officer in one of the leading banks, had lived there for years.

The pair had spent considerable time in criminal haunts, but had now disappeared. Kinsman, as it was learned later, had returned to New York. Splaine was apparently in Chicago still, spending his money, but the two “Orange Growers” seemed never to catch up with him. Their man had always gone around the corner within the past hour.

Finally they planned a ruse with the aid of two Chicago detectives. Splaine had been intimate with a certain woman of the underworld, known as “Josie.” Clare went to her, represented himself as a “stick-up man,” said he and his partner were after that guy with all the money and diamonds, meaning Splaine, and that they meant to rob him. If Josie worked with them, like a good girl, she would come in for her third of the plunder.

Josie professed ignorance. She was sure, so help her Mike, cross her heart, that she knew nothing about no gent with any money or diamonds—no such a party had been near the house in months, worse luck. Clare argued awhile with no results, and then said he would come back a little later and bring his pal. Then Daly was introduced to Josie as the extremely undesirable citizen who would do the strong-arm work. But Josie still insisted that she had no idea what they were talking about.

They went out, and within a few minutes the two Chicago detectives, Dempsey and McFarland, known by Josie as officers, came in, described the disguised Clare and Daly as two of the most desperate “yeggmen” in the country, said that they had warrants for them, and asked if they had been seen. Josie crossed her heart again, and said that there had been nobody around there all evening—believe her, it was like living the simple life, and if things kept on bein’ so quiet she’d blow the town and go back to Keokuk.

Then, enter the two “Orange Growers” once more, to be warned by the fair Josie.

“Say, the bulls are after you boys, an’ you better pull your freight, ‘cause if you stay around here they’re goin’ to *get* you.”

“Aw, hell!” was the reply, “We’d just as lieve kill a cop or anybody else. We stick in this house till you tell us where we can reach that guy with the money and the diamonds—understand?”

Then Josie broke down, and told them Splaine had been there early in the evening, but had gone away to take a train out of town. She did not know the railroad, and urged them to leave. This was evidently the truth, so they hurried to Police Headquarters, telegraphed descriptions to other cities with a request that arriving trains be watched, and went to bed to get a little sleep, so that they could be at work early the next morning.

But in the morning word came from the Memphis Police that Splaine had been arrested there on alighting from a train, and they thereupon notified New York, went to Memphis, secured Splaine on extradition papers, and brought him back to the metropolis.

The Traps Are Sprung

On Saturday afternoon, February 24, while most of the energy of the Detective Bureau was centered on the taxicab case, a brutal murder was committed in Brooklyn.

Word came that a Flatbush merchant had been found dead in his store, shot by unknown criminals whose motive was robbery. They had taken his watch and five safety razors.

Inspector Hughes was sent to the scene of the crime, and Commissioner Dougherty quickly followed. The murder occurred about one p. m. By six o'clock the same day the number of the watch had been learned through a canvass of jewelers in the neighborhood, it being on record by one of them who had repaired it, and the watch and two of the safety razors had been found in pawnshops. Descriptions of the murderers were obtained, and by three o'clock Sunday, the following day, their identity had been established. Within thirty hours after the crime these men had been arrested, positively identified as the pawners of the stolen articles, and completely tied up in their own statements.

At half-past nine Sunday night, while the Commissioner, Inspector Hughes and Captain Coughlin, in charge of Brooklyn detectives, and Lieutenant Riley were winding up their work on this murder case, word suddenly came over the telephone to Commissioner Dougherty from an informant that Eddie Kinsman had been seen in New York with "Swede Annie," and that he was accompanied by an unknown man, wearing a red

necktie, supposed to be Gene Splaine. At the same time Matron Goodwin, stationed inside Annie's lodgings, telephoned that she had information indicating that Kinsman had returned to the city.

When the Commissioner motored over to New York, he found his men covering a hotel on Third avenue, not far from 42d street. Kinsman and Annie were inside.

The Commissioner hurried to the 18th precinct police station and sent out a call for twenty-five detectives. Team work on the case had developed to such a degree by this time that, though the men came from many stations, they were all on hand in record time, a matter of twenty or thirty minutes. Then a squad of these plain-clothes men was sent to watch every railroad station and ferry house, each accompanied by one of the men from "Plant 21," familiar with Annie from having followed her movements for a week. Surveillance on the hotel was strengthened, and steps taken to ascertain whether the unknown man in the red tie was really Splaine.

While making these arrangements, a curious incident occurred, showing how small is New York, after all, with its five million people. As Dougherty sat in the 18th precinct station, Detective Rein brought in a prisoner arrested for shooting a citizen. He was drunk and extremely disagreeable, and gave his name as "Steigel," living at 98 Third avenue. Something in this address echoed to something in Dougherty's memory—a keen one for names, dates, addresses and facts generally. He investigated further, and found that this prisoner was no other than the criminal Molloy, whose urgent need of "character witnesses" had played so important a part in furnishing the first information in the taxicab case.

By some mischance, these operations came to the ears of the newspaper men. Word went about, beginning in Brooklyn, that important arrests were to be made. The reporters followed the Commissioner in a crowd when he refused to make a statement. They not only hampered the work, but greatly endangered the outcome. On the following day, Monday, the papers published information about the police activities of the night before. The hazard here may be appreciated when the reader is told that Kinsman had been a persistent reader of newspapers from the day of the robbery, and that it was largely the pessimistic newspaper comment upon Montani's release in court that led him to return to New York. Deceived by the newspaper chorus of "police demoralization," and the easy way in which Montani had

got free, he concluded that the taxicab investigation had been given up as hopeless.

Kinsman was arrested in the Grand Central Station at half-past eleven Monday morning, with Swede Annie and the unknown in the red tie. They were about to set out for Boston.

There were some amusing circumstances in the arrest.

Kinsman's immunity over night, and police precaution in deferring the arrest until the last moment, on the chance that other persons would join the party, gave him a false confidence. He afterward admitted that ideas of a "pinch" at that time were far from his mind.

When a criminal thought to be dangerous is to be arrested in a crowded place like the Grand Central Station, police officers operate by methods that prevent a struggle. As two detectives closed in on the party, Kinsman watched one of them out of the corner of his eye. While a waiter at the "Nutshell Café" he had often thrown objectionable guests out onto the sidewalk. He now fancied that one of the detectives resembled a man he had once "bounced," and was ready to fight if attacked.

"I was just folding it up," he said, referring to his fist, "and getting ready to land on him when one had me from behind and the other in front. Then I knew they were cops."

Annie was gorgeously dressed in a new blue suit and fine fur coat, bought out of the taxicab money. The unknown man proved to be Kinsman's brother, who had come down from Boston with him. Kinsman had visited his native city before returning to New York, but had escaped the police net there by stopping at a hotel and sending for his brother. He sent a grip home by this brother, and it was afterward found to contain three packages of bills of \$250 each in the original wrappers of the bank.

As soon as word of these arrests was telephoned to Police Headquarters, the other traps were sprung. Detectives brought in Montani, Jess Albrazzo and Myrtle Horn, the latter, with Annie, being held as witnesses.

CHAPTER III

HOW THE CRIME WAS HANDLED BY THE POLICE—THE CONFESSIONS

Now begins some of the most interesting work connected with the taxicab case—the examination of the first prisoners, which led to confessions, the implication of other guilty persons not yet under arrest, and the voluntary pleas of guilty in court which saved costly trials in all but Montani's case.

This sort of work is familiar under the term of "third degree." It is popularly supposed to be accompanied by force and sometimes brutality—and in wrong hands often is. Commissioner Dougherty's experience with a commercial detective agency, however, has led him to develop intelligent methods. The commercial detective organization has none of the authority of an official police force, and at the same time, through its national operations and the general character of its work, deals chiefly with the most accomplished criminals. Therefore, tact and legal subtilty are depended upon in examining suspects, and the Commissioner long ago learned to get his results mainly by straight question and answer. He puts his own wits against those of the suspect, backed by experience in many other cases. He has a practical grasp of criminal psychology, as well as many ingenious ways of using evidence to the best purpose, overwhelming the suspect, and breaking down stolidity and deception. Dougherty is not only opposed to force in the "third degree," but knows that it is of absolutely no use.

The first prisoner examined was Eddie Kinsman.

When he was brought to Police Headquarters Kinsman appeared to be thoroughly satisfied with himself, and confident that no policeman would get anything out of *him*. He proved to be a good-looking young fellow, of athletic build, and by no means a fool.

Methods of examination are never twice alike, for they depend upon the case and the suspect. As a rule, however, when the criminal first sits down

to answer Commissioner Dougherty he is astonished by that gentleman's apparent lack of guile, and ignorance of worldly knowledge. When Dougherty composes himself for an inquiry, he is rather a heavy-looking citizen, not unlike a country magistrate, and his first questions, put for the purpose of determining the suspect's character and previous surroundings, usually relate to bald routine matters, such as name, age, residence, education, family, and so on.

"Gee!" thinks the suspect, "This guy is the biggest lobster I ever got up against! I wonder how he ever got to be a police commissioner. He must have a strong political pull."

Kinsman was ushered into a large, quiet office, where this bureaucratic official began by asking his name, birthplace and other details.

"Will you kindly stand up a minute while I get your height?" asked the questioner, and Kinsman did so in a patronizing way. Then the dull-looking gentleman turned back Kinsman's coat and looked at the little label sewed in the inside pocket.

"I see that you have been in Chicago recently," he observed. "This suit was made by a tailor there. You ordered it February 17th, two days after the robbery."

He looked into Kinsman's hat.

"That was bought in Chicago, too."

He examined the label on Kinsman's tie.

"This was also bought in Chicago."

He turned up the label at the back of the neck of the new silk underclothes worn by the prisoner.

"Those were bought in State street, Chicago, and from a very good store, too—I know it well."

Kinsman now began to be pugnacious and defiant.

"See here!" he said, "You must take me for a boob."

"Yes, I think you are a boob," replied the Commissioner. "You might as well have made your getaway with a brass band as to take Swede Annie with you to Albany, attracting attention all the way, and then send her back to New York with a hundred dollars to tell the police where you had gone."

Suddenly Lieutenant Riley, personal aide, walked into the Commissioner's office carrying a cheap article of millinery—a shabby black velvet hat with a row of little red roses across the front. Commissioner Dougherty apparently grew very angry.

“What do you mean by bringing that thing in here now?” he exclaimed. “I am not ready for that—take it away.”

This “shot” had been previously arranged, of course, but Riley pretended to be injured when called by his superior.

“Cripes!” exclaimed Kinsman. “Annie’s old hat. How did you get that so quick?”

“Oh, that is only one thing we’ve got on you,” replied the Commissioner. “We know that you went to Peekskill in a taxicab with Annie and Splaine on the afternoon of the robbery. We know that you took Train 13 to Albany, and where you stopped that night, and where you bought Annie’s new hat, and how much you paid for it, and what train you took to Chicago Friday noon. Suppose you tell me something more about your movements?”

Kinsman became scornful.

“If you know all that,” he said, “maybe you know more about where I went and what I did than I do myself. So what would be the use of me telling *you* anything?”

While certain people were being found outside, the Commissioner worked upon the prisoner along another line. Enough of Kinsman’s personality was now disclosed to show that he was vain and egotistical. This side of his nature was therefore fed with flattery. He was assured that the taxicab robbery had been a wonderful “stick-up.” Everybody in New York had been astonished. The whole country was talking about it, and about him. He must be an awfully bright, cunning fellow to have planned and carried out such a piece of crime.

Kinsman warmed up genially under this admiration, and seemed to be more confident than ever that so shrewd a young man as himself would have little difficulty in fooling the police.

But presently self-satisfaction was subjected to shock after shock.

Detectives were bringing in Montani, Myrtle Hoyt, Rose Levy, Mrs. Sullivan, the landlady with whom Kinsman had lived, and her housekeeper. Jess Albrazzo was under arrest. Kinsman’s brother was there for

examination, and Inspector Hughes and Lieutenant Riley were bringing in startling intelligence every few minutes.

The housekeeper was ushered in, and told how Kinsman had given her five dollars from a huge roll of bills before leaving for Peekskill.

Commissioner Waldo came in and sat while Mrs. Sullivan told what she knew about her late lodger.

Kinsman's brother gave information about the former's movements from the time he had arrived in Boston until he brought him to New York to have a good time, and Kinsman knew that at the home of his parents in Boston the police would surely find money in the original wrappers of the bank.

The prisoner was put under pressure to explain how a man like himself, known to be working as a waiter in a cheap resort, could suddenly have come into possession of such sums. Statements from the women in the case had been secured, and were produced, and finally Kinsman was brought to detailed admissions, one by one. He agreed that it was true he had gone to Peekskill in a taxicab with Annie and Splaine, that he had gone to Albany, had bought Annie a hat there, had gone to Chicago, and so forth. Opportunities were given him to see Montani and Jess, under arrest. Nothing but the truth was told him, yet by degrees he was led to see himself surrounded on all sides by evidence and confessing accomplices. At last he broke down completely, his vain self-confidence destroyed, and made a detailed confession.

Kinsman's story brought up fresh circumstances and new actors in the taxicab case.

He told how he had come to New York nine months before, to have a good time and make money, and how, after going penniless and hungry, and getting a few dollars for taking part in a boxing match, he had become a waiter at the "Nutshell Café." There he soon made the acquaintance of criminals, meeting Gene Splaine, "Dutch" Keller, "Joe the Kid," "Scotty the Lamb" and other characters who were afterward to assist in the taxi robbery. There he also met "Swede Annie" and became her sweetheart, and finally, Jess Albrazzo, a dark little Italian who seemed to exert marked influence over all the others. It was from Jess that Kinsman first heard about the plan to rob a taxicab carrying money to a bank. This "swell job" was discussed, and Jess told him he had a friend named Montani who carried the bank's cash, and would cooperate in stealing it. The job would

be easy, because Montani would run the cab through a side street, and the only guard was an old man and a boy, neither of them armed.

One Sunday night, two weeks before the crime, Jess took Kinsman and other accomplices over the route, after all had drunk themselves into optimistic mood, and pointed out the bank from which the money was drawn, the streets through which Montani would run, the place where the gang could board the cab, and the point at which they could leave it and escape uptown. Details were discussed. There was a difference of opinion as to methods, and the plotters parted that night with the understanding that each would submit his own ideas of how the robbery could be most effectively and safely carried out. Eventually there was a definite agreement as to boarding the cab, preventing an outcry, making the getaway and splitting up the money.

According to Montani's information, the bank messengers usually carried between \$75,000 and \$100,000. When the day for the robbery had been set, word suddenly came that there would not be so large a sum. This was disappointing, but the gang decided to put their project through, nevertheless. Kinsman was busy at the café, where he worked until four o'clock on the morning of February 15, and "Dutch" called for him several times, asking if he was going to "lay down on the job." Finally Kinsman got away, went to a room in a lodging house taken by "Dutch," and found the gang all there smoking and drinking. At five o'clock they all went to sleep. At eight everybody was awakened. "Dutch" and Splaine took blackjacks, and offered Kinsman a revolver, which he refused, saying he could take care of himself with his hands, being a boxer. There were six in the party—Kinsman, "Dutch," Splaine, "Joe the Kid," Jess and "Scotty the Lamb," whose part was to stumble in front of Montani's cab at the place selected for the boarding, and thus give the chauffeur a colorable reason for slackening speed if eye-witnesses afterward called his honesty into question. The gang had breakfast in a cheap restaurant, stopped for a drink at the saloon of "Jimmie the Push" in Thompson street, where the booty was to be divided, and proceeded downtown, after parting with Jess. The latter was the organizer, and took no part in the robbery; as he explained, he was known as a friend of Montani's, and wanted to arrange so that he could prove an alibi if suspected, proving that he had not been near the scene of the crime when it was committed.



“Scotty” Receives Final Instructions

At that saloon they had met a trio of Italian criminals known as the “Three Brigands,” who said they were not to take part in the robbery, but would be on hand to see that it was vigorously put through.

Arrived upon the ground, at Church street and Trinity Place, Splaine and Kinsman waited on the west side of the thoroughfare, while “Dutch” and “Joe the Kid” stood on the opposite side. “Scotty the Lamb” posted himself fifty feet off.

As Montani’s cab came speeding along, “Dutch” raised his hat as a signal. “Scotty the Lamb” did not have time to step in front of the vehicle before it slackened, and the robbers were aboard. “Dutch” opened one door and struck the old bank teller, Wilbur Smith, and “Joe the Kid” boosted Splaine in on the other side, where he assaulted young Wardle. Kinsman mounted the seat beside Montani, and the latter put on full speed, telling Kinsman to point his finger at his side as though he had a revolver. The cab slipped past trucks and dodged pedestrians. Kinsman said he seemed to see policemen everywhere, and was dazed when the vehicle stopped at Park Place and Church street. All the criminals got off there, “Dutch” lugging the brown bag containing the money. Splaine and “Dutch” were both covered with the bank guards’ blood. Taking Kinsman, they jumped aboard a street car. It was crowded. Several passengers noticed the bloody men, but were told that there had been a fight, and the occurrence was not reported to the police. After riding two or three blocks they got off, boarded an elevated train, rode to Bleeker street, and went to a back room in “Jimmie the Push’s” saloon, where the money was to be divided. Here they found Jess and the “Three Brigands,” and the latter now set up a claim for a share in the booty. Matteo, leader of the trio, pulled out a revolver, and there was a discussion. Finally the bag was opened, and found to contain \$25,000. There were three packages of \$5,000 each and one of \$10,000. Matteo grabbed the latter package, saying that his gang was to get \$3,000 apiece, and that the odd \$1,000 would go for “fall money” to get Molloy out of jail in Brooklyn. The robbers then divided the remainder, Jess taking \$3,000 for himself and another \$3,000 for Montani, Splaine getting \$3,000, Kinsman \$2,750, “Joe the Kid” \$250 and “Scotty the Lamb” nothing. Kinsman then told how he had called for Swede Annie, and left town in a taxicab, going as far as Peekskill, to avoid the police at the Grand Central Station.

Jess Confesses and Assists

The next prisoner examined was Jess Albrazzo, a dark little Italian, who appeared to be somewhat ignorant.

In this examination the Commissioner had ample outside proof, and he also employed what he calls his “psychological study.” Years ago, in dealing with negro suspects in Southern crime, Dougherty devised a little instrument which he dubbed his “lie watch.” This was a dial with a needle, hung round the suspect’s neck. If the latter told the truth, the needle presumably pointed to “Truth,” and if he didn’t, it pointed to “Lie.” Being out of the suspect’s sight, it had a strong effect.

From that, Dougherty went into studies of the mental states of suspects under examination, and found rough physiological indications which he uses as a guide to the integrity of the suspect. Investigations of European criminal experts like Professor Hans Gross amply demonstrate that there is a real scientific basis for such methods.

Dougherty took it a little easier with Jess. They sat down, and the Commissioner went over the Italian’s movements for the past few months, showing him how thoroughly he was implicated. Jess had worked for Montani, and been intimate with the rest of the taxicab “mob.” He and Montani were confronted with each other, and points brought out in Kinsman’s confession were skillfully used.

At one point in this examination the Commissioner rose from his desk, took the lobe of Jess’s ear between his thumb and finger, pinched it slightly, looked at the ear closely, and then walked out of the room.

Jess was all on edge with curiosity.

“Why did he pinch my ear?” he asked of Lieutenant Riley.

“To see if you are telling the truth,” was the answer, and in a moment the Commissioner came back and examined that ear again.

“Yes, he’s lying,” he declared. “Look at his ear—can’t you see it yourself?” Others were invited to look at Jess’s ear, and the little Italian became so curious that he actually tried to look around the side of his skull and see his own ear!

This psychological study was backed up with abundant proof that Jess had not told the whole truth. Presently he weakened and confessed. He told

how he had handed \$2,000 in a collar box to “Jimmie the Push” on the day of the robbery, which was to be taken to a Bowery bank and put in a safe-deposit vault for Montani. He agreed to accompany the police to Jimmie’s place in Thompson street, and late that evening a party made up of Commissioner Dougherty, Inspector Hughes and Lieutenant Riley went there, taking Jess along.

“Jimmie the Push’s” place is one of the most picturesque thieves’ resorts in lower New York.

“Typical of the old village,” as Dougherty puts it. “In fact, this whole case has a strong flavor of the little old village of New York.”

Jimmie was out when they got there, but this saloon was in charge of the biggest, swarthiest Italian bartender in town, a tough Hercules weighing somewhere around three hundred pounds. The room was crowded with motley characters, drinking beverages known to the neighborhood as “shocks” and “high hats.” For their edification, a tramp magician was taking coins out of his ears, his nose and the air.

Jess was not known to be under arrest, and immediately sent a boy called “Reddy” to fetch the proprietor, who had known the three police officers for years. Presently Reddy came back and said that Jimmie would come in about half an hour, as he was playing cards and had a fine hand.

Reddy was sent back to impress upon Jimmie that Jess wanted to see him right away—it was very important. In about two minutes, just as the Commissioner had bought a “high hat” for everybody in his party, Jimmie appeared. He was told that Jess had got into trouble in connection with the taxicab robbery, and asked about the money in the safe deposit vault. “Jimmie the Push,” with his partner, Bob Deilio, had by this time been implicated themselves, for it was clear that the money had been divided in their resort, and that probably they had taken part in the planning, and the decidedly one-sided division of the spoils. Jimmie was led to believe that he did not rest under suspicion, however, and that he was only asked to aid the police. He said Jess had handed him a collar box on the day of the robbery, asking him to put it in a vault in his own name, but that he had had no idea what the box contained, and had left it lying behind the bar for a couple of days before he got a chance to go to the bank with it. He readily promised to appear at Police Headquarters the following morning, bring the key to the safe deposit box, and help recover the money. Thereupon the police officials

bade him good night and went away. But no chances were taken on “Jimmie the Push.” From that moment he was shadowed.

That Monday was a busy day in many other ways.

Developments came thick and fast.

Kinsman’s home in Boston was visited, and \$750 of the bank money recovered in the original wrappers. It had laid in his grip, unknown to the honest Kinsman family.

Swede Annie, Myrtle Horn and a girl named Rose Levy were examined, quickly broke down, and made tearful statements to be used in evidence. These women were held only as witnesses, and as the case cleared up after a few days’ detention, were released.

The girl, Rose Levy, greatly attracted the Commissioner. She was only nineteen years old, a mild-mannered little Jewess with jet black hair and very remarkable eyes. The Commissioner went into details of her personal story. It seems that she had left her home in Brooklyn two months before, after a quarrel with her mother, and had come to New York looking for a position. But she quickly fell into the lower world, became known as Jess’s girl, and was ambitious to be “one of the gang.” After a fatherly talk she was persuaded to return to her home and live a decent life. But within a week she was back in New York again, in her old haunts, trying to raise money to help Jess, for whom, she told the Commissioner, she would willingly work for the rest of her days.

Before visiting Jimmie’s saloon the Commissioner called up the “Orange Growers” in Chicago, had a long talk with them, told what progress was being made, and put new life into them.

More Money Recovered

True to his word, “Jimmie the Push” walked into Police Headquarters at nine o’clock Tuesday morning, February 27, closely followed by his unseen shadowers. He produced the key of the safe-deposit vault, and went with officers to see the money recovered. There was \$2,000, as Jess had stated, still in the wrappers of the bank. Jimmie was still permitted to go free, under the impression that he had come through the ordeal “clean,” while fresh evidence was being obtained against him.

That morning the Commissioner also took Kinsman down over the route of the robbery, to have him explain it in his own way. This was done to strengthen the case against Montani, and upset his story in court.

Then “Scotty the Lamb” was located, arrested, brought to headquarters and led to confess. “Scotty the Lamb” was in some respects a pathetic figure in the case, and also a humorous one. He had been in charge of the lunch kitchen at the Arch Café when Jess owned it, and later worked as a dishwasher in a Washington Square hotel. A Scotch youth, from Glasgow, he had been in this country about four years, and while no criminal record appeared against him, he was plainly in the company of thieves most of the time. According to his statement, he had been promised \$25 for doing some work for Jess, and without inquiring into the nature of it at all, had shown up with the gang and gone along to do his minor part of a “stall,” stumbling in front of the cab. But before he could get out into the street, the cab had been boarded. So poor “Scotty the Lamb,” without a nickel for carfare, plodded all the way uptown again to the saloon where the money was to be divided, and got nothing whatever. He was a cheerful soul, however, and the life of the party when the gang was locked up, cracking jokes, and taking the view that, as sentences ought to be proportioned to the amount of money each member of the gang had got in the division, and he had got nothing, he might be let off with six months’ imprisonment.

“Scotty, haven’t you got any overcoat?” asked Inspector Hughes, sympathetically, as they were going to court one brisk morning. “Did you ever have an overcoat, Scotty?”

“No, sir, I never had an overcoat,” replied Scotty, and then as he thought of his prospects for going to prison, added drolly, “And now I don’t expect, sir, that I ever will!”

The Fine Italian Hand

The next step in the case was that of arresting “Jimmie the Push” and his partner, Bob Deilio.

Another phase of the robbery now began to come out plainly.

Up to the present time the main burden of proof pointed to the four “hold-up” men of American birth as the chief actors in the crime. Montani

and Jess, the two Italians, appeared to be accessories.

But as the tangled threads were unravelled, one by one, it was found that the Italians involved outnumbered the American thugs, and that furthermore they had outwitted them.

When Bob Deilio was arrested he drew \$215 in five-dollar bills out of his pocket and handed it to the police, admitting that it was part of \$5,500 of the stolen money. The rest, he asserted, had just been paid for rent of the two resorts operated by “Jimmie the Push” and himself.

Jimmie and Bob were taken to Police Headquarters and examined, with Jess present. Commissioner Dougherty played one against the other so skillfully, with cross-questions and counter pressure, that in a little while each was excitedly telling tales on his two companions with the desperate hope of clearing himself, and denunciations flew back and forth among the trio as evidence came out that was likely to send them all to prison. Their confessions were obtained, and used in a new effort to break down Montani. But this was without results. The little Italian chauffeur still stuck doggedly to his original story.

From these new confessions it appeared that the Italians had planned the crime, enlisted the American hold-up men to carry out the dirty work, and laid a counter-plot for holding them up in turn when the money was divided. The “Three Brigands” were ostensibly offered a chance to take part in the actual robbery, but refused on the plea that it would be too risky, and that they did not believe Montani could carry it out successfully. On the morning of the crime they walked north over the route. When they met the taxicab coming south, with a policeman on the seat beside Montani and two unconscious bank messengers inside, they knew that the project had succeeded. So the “Three Brigands” hurried uptown to “Jimmie the Push’s” saloon. They got there so quickly that they were ahead of the robbers. Jess made a rehearsed protest when they insisted in sharing in the plunder, but the “Three Brigands” drew revolvers, threatened to make a disturbance that would bring in the police, and finally helped themselves to \$10,000. When the thugs who had done the actual work left the saloon, they had only \$8,000 all told. The Italians, who had “played safe” at every point, had \$17,000.



“The Brigands” “Stick-up” the Hold-up Men
for Theirs

One of the Brigands Comes In

The actual whereabouts of the “Three Brigands” was not known to the police then. But there were certain channels through which news might reach at least one of them. Word was sent through those channels, therefore, that it might be best for them to appear and give an account of themselves, and on Friday, March 1, just at the time Splaine had been brought back from Memphis, the little leader of the brigands, Matteo Arbrano, an undersized Italian wearing spectacles, who had carried out the job of robbing the hold-up men, surrendered himself to the District Attorney.

Arbrano said that he had divided his \$10,000 with his two companions, Gonzales and Cavaquero, and immediately left New York, taking a steamer for Mexico by way of Havana. At the latter city he stopped over night, met a woman and accompanied her to a resort, was drugged and robbed of \$2,700, and woke on the Prado with only \$100 left, a single bill that had been concealed in his shoe. With that he returned to New York. The story is regarded by the police as more picturesque than convincing. It is probable that Matteo’s share of the plunder, with that of other Italians involved, has been carefully “planted.”

Pauli Gonzales, another of the brigands, was traced to Vera Cruz, Mexico. In the present state of that country, however, it was found impossible to arrest and extradite him upon the evidence at hand.

Three other persons concerned in the robbery are still at large at this writing—“Dutch” Keller, “Joe the Kid,” and an “unknown” whose identity is concealed for police reasons.

Montani pleaded “Not guilty,” and stood trial. After two days, exactly a month and a day subsequent to the robbery, he was convicted by a jury, and sentenced to not less than ten years and not more than eighteen years and two months in prison, with hard labor.

A word must be said about the prompt action of the District Attorney’s office in the taxicab case. Where crime has had such publicity there is an opportunity to make a demonstration of great value by pressing the prosecutions. It was not lost. Under Assistant Charles C. Nott, Jr., evidence

was succinctly laid before judges and juries, the trials finished in a matter of hours, and convictions and sentences secured within six weeks after the robbery. Furthermore, the various sentences were just, being carefully graded according to the part played by each offender, his character and previous record, and his individual effort in facilitating justice.

<i>Name</i>	<i>Arrested</i>	<i>Pleaded</i>	<i>Sentenced</i>	<i>Sentence</i>
MONTANI, GENO	Feb. 26,'12	Feb. 29,'12	Mch. 16,'12	Not less than 10 yrs. nor more than 18 yrs. 2 mos. Judge Seabury.
KINSMAN, EDW.	Feb. 26,'12	Mch. 1,'12	April 9,'12	Not less than 3 yrs. nor more than 6 yrs. Judge Crain.
SPLAINE, EUGENE	Mch. 2,'12	Mch. 4,'12	Mch. 25,'12	Not less than 7 yrs. 6 mos. nor more than 14 yrs. 6 mos. Judge Seabury.
DELIO, ROBERT	Feb. 28,'12	Mch. 4,'12	Mch. 29,'12	Not less than 2 yrs. 6 mos. nor more than 4 yrs. 2 mos. Judge Seabury.
PASQUALE, JAMES (“Jimmie the Push”)	Feb. 28,'12	Mch. 4,'12	April 8,'12	6 mos. Penitent’ry. Judge Davis.
LAMB, JOSEPH (“Scotty the Lamb”)	Feb. 27,'12	Mch. 18,'12	Mch. 29,'12	Indeterminate sentence, Elmira. Judge Seabury.
ARBRANO, MATTEO	Mch. 2,'12	April 3,'12		2 to 4 years. Judge Davis.

ALBRAZZO, JESS

Mch.
26,'12

Mch.
18,'12

3 to 6 years.
Judge Davis.

FINAL

A WORD ABOUT THE NEW YORK POLICE

It has been the writer's good fortune to look into the work of both the London and the New York policemen recently, within the same year.

A somewhat embarrassing point arose.

In London, the "bobby" was anxious to know which police force the writer considered best. The "bobby" gets his ideas of the New York "cop" from such accounts as filter through the cable dispatches from our newspapers. He hears chiefly the worst, and pictures the "cop" as a lawless individual, wielding pistol and club indiscriminately, with whom it is not safe to pass a civil word. So, when he puts his little question about the respective merits of the two organizations, he reserves the right to keep his opinion that the London force is best anyway.

In New York, it is much the same. The "cop" has heard just enough about the "bobby" to regard him with mild tolerance. He pictures him as a policeman servile to the last degree, thankfully accepting sixpenny tips from pedestrians, and occupied chiefly with unarmed thieves and harmless political offenders.

When one has good friends in both forces, the question "Which do you think best?" is to be met with tactful evasions. And the more one thinks it over, the more it becomes clear that there is really little difference at bottom. Both police organizations are made up of good men, following the same trade along the same lines, and dealing with about the same general conditions.

The London "bobby," however, enjoys excellent leadership, is governed by a definite administrative policy, has the backing of the courts, and therefore comes in for a general public good will which is exceedingly useful to him in the performance of duty.

The New York “cop” rather lacks public good will. Administrative policy has not been well defined in the past. The courts do not always accept his evidence, much less back him up, and he has been made the scapegoat for various shortcomings in leadership.

But to-day the New York policeman is working on an entirely new basis. Before long his public is certain to understand and like him as thoroughly as London does its “bobby.”

The change began with Mayor Gaynor, who insisted that both policeman and citizen have plain legal rights—until the citizen has committed a crime the policeman may not arrest him. The policeman has plain rights—the law empowers him to use all necessary force in making arrests in grave cases. But force must not be used for minor offenses. Confusion existed on these points to such a degree that when the Mayor began insisting upon them, many people thought he was putting into effect some of his personal whims. But they are all in the statute books, and many of them were there before the Mayor was born, because they are constitutional.

The present Police Commissioner, Rhineland Waldo, is not only administering the department along the strict legal line pointed out by the Mayor, but is effecting improvements of organization and method that must favorably alter the whole future of the service.

Commissioner Waldo is a soldier, with a record of service in the United States Army, and the Army’s fine standards to guide him.

In some ways the administration of the New York Police Department is a soldier’s job. If the ten thousand members were mobilized, they would make quite an impressive little standing army, with eight or ten full regiments of patrolmen, a brigade of cavalry, a small transport corps, a little navy, and so forth. As in an army, too, the men are enlisted, and may only be discharged for serious offenses. It is a force scattered over three hundred square miles of territory. The leader must be skillful in laying down regulations, and handling men in the mass rather than by personal contact. He must define duty plainly, hold everybody to it, eliminate departmental politics and abuses. Every man, wherever he is stationed, must feel that the general knows his business, that he lays down regulations for good reasons, and that day by day he is taking the organization somewhere.

For years, every Police Commissioner has asked for more men to keep pace with the growing city. When Waldo took charge he asked, too. While

he was waiting, however, he overhauled the organization and got one thousand additional patrolmen by cutting off men detailed for clerical and other special duty. Every large working force tends to create superfluous routine work. The useless routine was eliminated by better accounting methods, and the men sent back to do the street duty for which they originally enlisted.

Then Waldo's system of "fixed posts" was introduced. Complaints that policemen were hard to find at night had become common. So the platoon on duty from 11 p. m. to 7 a. m. was distributed by a plan under which the men work in pairs, one patrolling a given beat and the other standing on a street intersection. Each hour they change places, or oftener in severe weather. The fixed posts are about a thousand feet apart all over Manhattan and parts of Brooklyn. The system has been indiscriminately criticised, but produces its results. Fire losses were cut down the first six months, night crime has decreased, and many notable arrests are due to the fact that policemen stand all over town like checkers through the night. The exposure is no greater than that endured by traffic men. The men have better opportunities to advance themselves by making meritorious arrests, and the Commissioner knows that, as citizens see the police on duty, night after night, and crime decreases, there will be a growing good will for the department.

The Detective Bureau has not only been reorganized so that plain-clothes men are distributed over the whole city, but a new spirit has been introduced. Formerly, when the patrolman rose to detective rank, he felt that he had "arrived." No longer wearing the uniform or keeping scheduled hours, he was in danger of going to sleep. To-day, however, the detective has, not a job, but an opportunity. He must maintain his rank by results, or be reduced. To help him do this, he is taught methods in the school for detectives. But he knows that hundreds of ambitious men in brass buttons are working to attain that rank.

In an organization of ten thousand men, it would be strange if there were not some intriguing and politics. New York policemen are exceptionally shrewd, and occasionally they will try to "put one over" on the Commissioner, going around his authority. But Commissioner Waldo has proved singularly resourceful. He meets such an emergency with the

quickness, certainty and impartiality of a natural force like gravity, and the department has found it out.

He has laid out a clear path for advancement all through the department. The newest uniformed patrolman understands that, for meritorious work, he will have a chance of promotion. If he makes a commendable arrest, he is sent to the Detective Bureau, given instruction, and tried at detective work. If he makes good, he stays. If unfitted for plain-clothes duty, he has still had his chance. What is just as important, the Detective Bureau has had a chance to see him.

Under Commissioner Waldo and Deputy Commissioner Dougherty, the so-called “Black Hand” crimes among Italians have been checked, and will be stopped. Many of these cases were traced to sensational reporting of ordinary quarrels and assaults, and others to business rivalries. In the serious cases, arrests have been made and convictions secured.

Another well-known form of law-breaking in New York is gambling. This is particularly difficult to check because of ingenuity in concealing evidence, developed by long experience on the part of the law-breakers, and also the strong political alliances of gambling-house keepers. But after several experiments in dealing with it, the Commissioner now feels confident that he has a method which will result in the suppression of gambling, and that, as he says, “When you put a crimp into things of that sort they don’t generally come back.”

In other directions red tape has been abolished and economies brought about; the way has been opened for individual merit in all ranks; steps have been taken to develop and teach better methods; the work of the department has been brought closer to the public. There is a new spirit in the New York Police Department to-day—a spirit certain to develop the public good will and appreciation that is so necessary to the best order of public service.

SOME INTERESTING FACTS ABOUT THE POLICE DEPARTMENT OF THE CITY OF NEW YORK

The Police Department of the City of New York is made up as follows:

Commissioner and four Deputy Commissioners

19 Inspectors

25 Surgeons

95 Captains
624 Lieutenants
586 Sergeants
8,585 Patrolmen
191 Doormen
69 Matrons
1 Superintendent of Telegraph
2 Assistant Superintendents of Telegraph
1 Chief Lineman
5 Linemen
2 Boiler Inspectors

10,207 Total uniform force

Of this number, 500 are detectives in civilian dress.

In addition, there are over 247 civilians employed in clerical capacity.

There are 6 automobiles and 161 other vehicles, including patrol wagons, used by the Department.
Also 679 horses for mounted patrolmen.

The Harbor Squad numbers: 1 Captain, 7 Lieutenants, 9 Sergeants, 36 Patrolmen, 2 Doormen, besides civilians employed as engineers, firemen, oilers, deck-hands, etc.

It is provided with one vessel of 235 tons, five launches, two dories, and six boats.

These boats patrol about 340 miles of water front.

*** END OF THE PROJECT GUTENBERG EBOOK THE GREAT
TAXICAB ROBBERY: A TRUE DETECTIVE STORY ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES

EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a)

distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact

links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.